

24PR00662 Conservatorship of Lisa Kristin Forman

County: santa-barbara

Division: Conservatorship

Department: 2 SM-Cook

Hearing date: 2026-06-30

Motion: First Accounting and Report of Conservator

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Tentative Ruling: Conservatorship of Lisa Kristin Forman

Case Number

24PR00662

Case Type

Conservatorship

Hearing Date / Time

Tue, 06/30/2026 - 09:00

Nature of Proceedings

First Accounting and Report of Conservator

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Discrepancy no. 1 – Notice is defective. Petitioner must serve notice of the accounting pursuant to Probate Code section 1460. Notice in this case was not served on appointed counsel for Conservatee.

Discrepancy no. 2 – Estate on hand at end of account not supported by schedule E. (Prob. Code, §1063(a).)

Discrepancy no. 3 – Bond is not adequate or improperly calculated.

Discrepancy no. 4 – Request for attorney's fees is not supported by adequate documentation (billing statements, etc.), thus the Court cannot determine the reasonableness of the request. Further, that attorney substituted out of this case on April 3, 2025. It is recommended the Court order Karen L. Lynch to file a separate petition for attorney's fees in order to justify being paid from the conservatorship estate without court approval.

Fees can only be paid from the conservatorship estate after court authorization. (Prob. Code, §§ 2640–2643.) (See Prob. Code, §§2430(a)(4), 2640(a), 2641(a), 2642(a), 2647.) If a conservator pays or receives compensation, or if an attorney for the conservator receives any payment from the conservatorship estate without advance court approval, the court may surcharge and remove the conservator and impose any other sanction authorized by law. (CRC, Rule 7.755(a).)

The requirement of prior court authorization is applicable to retainers and deposits on account. (Prob. Code, §§2643, 2647; Cal Rules of Ct 7.755(a).) Court approval is also required for contingency fee agreements. (Prob. Code, §2644(a).) The prohibition against contingency fee agreements without court approval, in addition to the statutory scheme requiring court approval before any fees may be paid, by implication strictly regulates any claim for reimbursement for fees paid by a third party without prior court authorization.

While the language of the reimbursement statutes does not specifically forbid the practice of third party pre-payment of attorney fees from non-estate resources (See Prob. Code, §2466, CRC, Rule 7.755(a)), and CRC, Rule 7.751(a) specifically allows reimbursement for pre-appointment fees not paid out of estate funds, the absolute requirement to obtain subsequent approval of any transaction (Prob. Code, §2625 [“transaction not previously authorized, approved, or confirmed by the court is subject to review by the court upon the next succeeding account of the guardian or conservator occurring after the transaction”]) means that the court can refuse to approve the reimbursement request it finds specious, and “the court may hold the guardian or conservator liable for any violation of duties in connection with the ... transaction.” (Ibid.) In practice, this means the court can deny a pre-paid fee reimbursement request, or require the reimbursement request to meet the same evidentiary standards and court pre-approval requirements of regular fee requests to be paid from estate funds.

Therefore, attorneys or conservators 1) paid from a third party, 2) with non-estate funds, 3) prior to court authorization of that payment, risk the same consequences that a conservator or attorney faces when paid out of estate funds without some form of court pre-approval (i.e. sanctions or surcharge).

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 160 543 3416

Passcode: 5053334

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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